U. S. DEPARTMENT OF LABOR

JAMES J. DAVIS, Secretary

CHILDREN'S BUREAU

TENTH ANNUAL REPORT OF THE CHIEF, CHILDREN'S BUREAU TO THE SECRETARY OF LABOR

FISCAL YEAR
ENDED JUNE 30

1922

WASHINGTON
GOVERNMENT PRINTING OFFICE
1922

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TENTH ANNUAL REPORT

OF THE

CHIEF, CHILDREN'S BUREAU.

UNITED STATES DEPARTMENT OF LABOR,
CHILDREN'S BUREAU,
Washington, September 12, 1922.

SIR: I have the honor to transmit herewith the tenth annual report of the Children's Bureau for the fiscal year July 1, 1921, to June 30, 1922.

To the duties of the bureau laid down by the act of Congress of April 9, 1912, of investigating and reporting upon "all matters pertaining to the welfare of children and child life among all classes of our people" there has been added during the past year the responsibility of administering an act designed to reduce the loss of life among mothers and babies in the United States.

MATERNITY AND INFANCY.

This act, for the "Promotion of the welfare and hygiene of maternity and infancy," became a law November 23, 1921. It is, in all essentials, the same as the plan for the public protection of maternity and infancy submitted by Julia C. Lathrop, formerly Chief of the Children's Bureau, in her annual report for 1917.

Briefly summarized, its most important provisions are as follows:

(1) **Appropriation.**—The act authorizes an annual appropriation of $1,240,000 for a five-year period, of which not to exceed $50,000 may be expended by the Children's Bureau for administrative purposes and for the investigation of maternal and infant mortality, the balance to be divided among the States accepting the act as follows: $5,000 unmatched to each State, and an additional $5,000 to each State if matched; the balance to be allotted among the several States on the basis of population and granted if matched.

(2) **Administration.**—*National administration* of the act is lodged with the Children's Bureau of the Department of Labor; *local administration* in the States is in the child-hygiene or child-welfare division of the State agency of health or, where such a division does not exist, the agency designated by the State.

(3) **Plan of work.**—The act intends that the plan of work shall originate in the State and be carried out by the State. A Federal Board of Maternity and Infant Hygiene, composed of the Chief of the Children's Bureau, the Surgeon General of the United States Public Health Service, and the United States Commissioner of Education, may approve or disapprove State plans, but the act provides that the plans must be approved if "reasonably appropriate and adequate to carry out its purposes."

As originally introduced, the act provided that the funds were to be expended by the States for provision of instruction in the hygiene of maternity and infancy through public-health nursing, consultation

centers, and other suitable methods; and the provision of medical and nursing care for mothers and infants at home or at a hospital when necessary, especially in remote areas. These specific provisions do not appear in the act as passed and the only prohibitions are that no part of the funds are to be expended for the purchase, erection, rental, repair, or equipment of any building, or for any maternity or infancy stipend, gratuity, or pension. While the act was passed November 23, 1921, the money was not made available until the following April. The second deficiency act of March 20, 1922, carried an appropriation of $490,000 for the balance of the fiscal year ending June 30, 1922, and the appropriation act for the Departments of Commerce and Labor for the fiscal year ending June 30, 1923, provides $1,240,000 for the purposes of the act. Some preliminary decisions and approval of forms by the Comptroller of the Treasury were necessary, so that the first money was not paid to the States until in May of 1922.

Up to date 42 States have accepted the terms of the act—all except Maine, Massachusetts, Rhode Island, New York, Louisiana, and Washington. Twelve of these acceptances (New Hampshire, Delaware, New Jersey, Maryland, Virginia, South Carolina, Georgia, Kentucky, Mississippi, Minnesota, Oregon, and New Mexico) are by State legislatures and the remaining 30 by governors pending the next regular session of the legislature. Porto Rico and Hawaii have both signified their desire to be included in the act. The fact that a part, even though so small as to be almost negligible, of the Federal taxes which Hawaii pays goes for this purpose, would seem to establish the justice of its being allowed to share in the benefits of the act, while Porto Rico suffers from an infant mortality rate so high that the need of Federal assistance can not be doubted.

The amounts made available to the States for the fiscal years ending June 30, 1922, and June 30, 1923, are as follows:

1922.

State.	Granted outright.	Granted if matched, apportioned on basis of population.	Total.
Total	$240,000.00	$237,500.00	$477,500.00
Alabama	5,000.00	5,297.56	10,297.56
Arizona	5,000.00	753.88	5,753.88
Arkansas	5,000.00	3,953.03	8,953.03
California	5,000.00	7,731.12	12,731.12
Colorado	5,000.00	2,119.83	7,119.83
Connecticut	5,000.00	3,114.75	8,114.75
Delaware	5,000.00	503.10	5,503.10
Florida	5,000.00	2,184.90	7,184.90
Georgia	5,000.00	6,533.10	11,533.10
Idaho	5,000.00	974.30	5,974.30
Illinois	5,000.00	14,631.03	19,631.03
Indiana	5,000.00	6,611.07	11,611.07
Iowa	5,000.00	5,423.56	10,423.56
Kansas	5,000.00	3,991.51	8,991.51
Kentucky	5,000.00	5,452.00	10,452.00
Louisiana	5,000.00	4,057.50	9,057.50
Maine	5,000.00	1,732.66	6,732.66
Maryland	5,000.00	3,270.49	8,270.49
Massachusetts	5,000.00	8,691.06	13,691.06
Michigan	5,000.00	8,276.07	13,276.07
Minnesota	5,000.00	5,385.44	10,385.44
Mississippi	5,000.00	4,039.70	9,039.70
Missouri	5,000.00	7,679.67	12,679.67
Montana	5,000.00	1,238.31	6,238.31
Nebraska	5,000.00	2,924.66	7,924.66
Nevada	5,000.00	174.63	5,174.63
New Hampshire	5,000.00	999.61	5,999.61
New Jersey	5,000.00	7,119.83	12,119.83
New Mexico	5,000.00	812.96	5,812.96

1922—Continued.

State.	Granted outright.	Granted if matched, apportioned on basis of population.	Total.
New York	$5,000.00	$23,429.70	$28,429.70
North Carolina	5,000.00	5,773.47	10,773.47
North Dakota	5,000.00	1,459.36	6,459.36
Ohio	5,000.00	12,993.41	17,993.41
Oklahoma	5,000.00	4,575.88	9,575.88
Oregon	5,000.00	1,767.35	6,767.35
Pennsylvania	5,000.00	19,672.69	24,672.69
Rhode Island	5,000.00	1,363.54	6,363.54
South Carolina	5,000.00	3,798.54	8,798.54
South Dakota	5,000.00	1,436.07	6,436.07
Tennessee	5,000.00	5,274.35	10,274.35
Texas	5,000.00	10,520.41	15,520.41
Utah	5,000.00	1,013.85	6,013.85
Vermont	5,000.00	795.09	5,795.09
Virginia	5,000.00	5,209.61	10,209.61
Washington	5,000.00	3,060.58	8,060.58
West Virginia	5,000.00	3,302.16	8,302.16
Wisconsin	5,000.00	5,938.04	10,938.04
Wyoming	5,000.00	438.57	5,438.57

1923.

State.	Granted outright.	Granted if matched.		Total.
		$5,000 to each State.	Apportioned on basis of population.	
Total	$240,000.00	$240,000.00	$710,000.00	$1,190,000.00
Alabama	5,000.00	5,000.00	15,836.95	25,836.95
Arizona	5,000.00	5,000.00	2,253.71	12,253.71
Arkansas	5,000.00	5,000.00	11,817.51	21,817.51
California	5,000.00	5,000.00	23,112.01	33,112.01
Colorado	5,000.00	5,000.00	6,337.20	16,337.20
Connecticut	5,000.00	5,000.00	9,311.48	19,311.48
Delaware	5,000.00	5,000.00	1,504.01	11,504.01
Florida	5,000.00	5,000.00	6,531.72	16,531.72
Georgia	5,000.00	5,000.00	19,530.55	29,530.55
Idaho	5,000.00	5,000.00	2,912.66	12,912.66
Illinois	5,000.00	5,000.00	43,739.10	53,739.10
Indiana	5,000.00	5,000.00	19,763.62	29,763.62
Iowa	5,000.00	5,000.00	16,213.60	26,213.60
Kansas	5,000.00	5,000.00	11,932.52	21,932.52
Kentucky	5,000.00	5,000.00	16,298.64	26,298.64
Louisiana	5,000.00	5,000.00	12,129.80	22,129.80
Maine	5,000.00	5,000.00	5,179.77	15,179.77
Maryland	5,000.00	5,000.00	9,777.05	19,777.05
Massachusetts	5,000.00	5,000.00	25,981.70	35,981.70
Michigan	5,000.00	5,000.00	24,741.11	34,741.11
Minnesota	5,000.00	5,000.00	16,099.65	26,099.65
Mississippi	5,000.00	5,000.00	12,076.58	22,076.58
Missouri	5,000.00	5,000.00	22,958.19	32,958.19
Montana	5,000.00	5,000.00	3,701.91	13,701.91
Nebraska	5,000.00	5,000.00	8,743.21	18,743.21
Nevada	5,000.00	5,000.00	522.06	10,522.06
New Hampshire	5,000.00	5,000.00	2,988.31	12,988.31
New Jersey	5,000.00	5,000.00	21,284.55	31,284.55
New Mexico	5,000.00	5,000.00	2,430.33	12,430.33
New York	5,000.00	5,000.00	70,041.78	80,041.78
North Carolina	5,000.00	5,000.00	17,259.66	27,259.66
North Dakota	5,000.00	5,000.00	4,362.74	14,362.74
Ohio	5,000.00	5,000.00	38,843.46	48,843.46
Oklahoma	5,000.00	5,000.00	13,679.48	23,679.48
Oregon	5,000.00	5,000.00	5,283.46	15,283.46
Pennsylvania	5,000.00	5,000.00	58,810.99	68,810.99
Rhode Island	5,000.00	5,000.00	4,076.28	14,076.28
South Carolina	5,000.00	5,000.00	11,355.65	21,355.65
South Dakota	5,000.00	5,000.00	4,293.11	14,293.11
Tennessee	5,000.00	5,000.00	15,767.55	25,767.55
Texas	5,000.00	5,000.00	31,450.52	41,450.52
Utah	5,000.00	5,000.00	3,030.89	13,030.89
Vermont	5,000.00	5,000.00	2,376.90	12,376.90
Virginia	5,000.00	5,000.00	15,574.00	25,574.00
Washington	5,000.00	5,000.00	9,149.55	19,149.55
West Virginia	5,000.00	5,000.00	9,871.74	19,871.74
Wisconsin	5,000.00	5,000.00	17,751.62	27,751.62
Wyoming	5,000.00	5,000.00	1,311.12	11,311.12

Payments have been made to 41 States from 1922 funds; of these, 22 matched their full allotment, 5 matched part of their allotment, and 14 received only the $5,000 granted outright.

The Federal Board of Maternity and Infant Hygiene met on April 18, 1922, elected the Chief of the Children's Bureau chairman of the board and proceeded to consider the plans submitted by States accepting the act. The board has laid down no plan of work which a State must follow nor has it made approval of plans contingent on complying with certain conditions, each plan being considered on its merits.

The plans submitted by the States and approved by the board vary greatly. The best planning for a State requires a correlation of the money available with the number and causes of deaths among mothers and babies in the different parts of the State and the available local facilities. Unfortunately, 18 of the States accepting the act have not as yet sufficiently complete registration of births to be counted in the birth-registration area and 11 are not in the death-registration area. Obviously their plans can not have the fact basis which is so desirable. Practically all these States are making the Sheppard-Towner Act the basis for a new effort to secure a new law or the enforcement of the one already enacted.

In some States the infant-welfare program is well started and the Federal money can be used in the development of plans already tested by local experience, but in a far smaller number is the program for maternity care anything like so well developed; hence preliminary educational work in this field is generally necessary. Examples of plans on which the States are starting their work will make the value of the law clear.

One State whose budget for 15 months with the Federal funds amounts to $62,269.02 has selected two counties as training and demonstration centers in maternity and infant care where special attention will be given to the development and standardization of plans of work.

These training bases offer the following variety of problems: (1) Strictly city problems; (2) small-town problems; (3) problems connected with mining camps and industrial communities; (4) rural problems associated with agricultural pursuits and involving isolation, poverty, and ignorance to a marked degree.

In this State inauguration of a maternity and infancy program in connection with the already established county health units will be possible in at least five additional counties. Efforts will be made to secure the adoption of a maternity and infancy program in the remaining 15 counties having organized county health units. In counties having no full-time health service a general study of the racial elements of the population and the possibilities of local cooperation will be made, and campaigns to secure registration of all births, use of "drops" in the eyes of newborn babies, and reporting of cases of ophthalmia neonatorum will be undertaken.

A program for another State involving expenditure of approximately $176,967 for 15 months provides for 2 field physicians, 6 supervising nurses, 4 full-time nurses, and 80 nurses who will give half time to the maternity and infancy work. In this State special attention is to be given to the training and supervising of midwives. The number of prenatal centers in the State is to be greatly increased as is the number of well-baby clinics.

Another State which will have available $61,567.22 for a 15-months' program has a fairly well-developed county organization for public-health work and there is general local appreciation of the value of work for mothers and babies. In this State nurses are to be placed in counties already organized who will devote themselves to maternity and infancy. Supervision of midwives, estimated at some 6,000, and inspection of maternity hospitals, as well as conducting prenatal and child-hygiene centers, are included in the plans.

In another State which will have only the unmatched Federal funds, $10,000, general educational work will be done from the central office and two demonstrations, one in a town and one in a rural district, of the work of an infant-welfare and prenatal center will be made.

One of the smaller Eastern States with a well-developed child-hygiene program and a budget of $76,800 proposes to reduce the maternal mortality by (1) instruction of mothers through prenatal clinics; (2) investigation of all puerperal deaths attended by midwives; (3) supervision of midwives; and (4) cooperation with hospitals. The infant mortality rate will be reached through prenatal care offered the mothers and the instruction of mothers in infant care. This State will have a staff of 44 nurses, enough to make possible a visit to all newborn babies and the follow-up work for the "Baby-Keep-Well Stations" which are being developed, and the licensing and supervision of boarding homes. Two social workers will give special attention to the problem of preventing unnecessary separation of mothers and babies.

In contrast, a large Western State which has only the unmatched Federal funds plans general educational work as to the needs and possibilities of an infant- and maternal-hygiene program, will make its first survey of the State's problems—geographic distribution of maternal and infant deaths, causes, available local facilities, etc.; and will employ the school nurses of the State during the summer months for infant-welfare work.

A State in the Middle West plans regular monthly conferences at a series of maternity centers that will be opened throughout the State; a Child-Welfare Special will visit six communities holding children's health conferences at stated intervals, institutes will be held to instruct women who will act as "mother's helpers" in the care of the home and other children during and after the mother's confinement, and Little Mothers' Classes will be organized in the schools.

The immediate direction of the maternal- and infant-hygiene work of the bureau is in charge of Dr. Anna E. Rude.

The widespread discussion of the act has already done much to acquaint women and men with the importance of scientific care for mothers and babies. Every State must face the fact that there is a general demand that, whatever the source or character of the opposition, community measures of proved value must be utilized for reducing the present unnecessary loss of life. No one can say what the death rate among mothers and babies should be. It is agreed that the present one can be greatly reduced. It is not too much to look forward to an almost negligible number who will be lost.

MORTALITY AMONG MOTHERS AND BABIES.

A summary and analysis of data relating to mortality among nearly 25,000 infants born in eight cities is in progress. The analysis brings together a mass of evidence upon the basis of which the influence of each factor in determining the infant mortality rate can be ascertained. The employment of the mother during pregnancy is shown to have an influence not only in higher stillbirth and neonatal mortality rates in the first month of life, but also in an increased proportion of premature births. The employment of the mother away from home during the infant's first year of life is found to be accompanied by a marked increase in the infant mortality rate, due in part to a greater prevalence of artificial feeding among these babies. The analysis of the relation of infant feeding to infant mortality brings out the very high rate associated with artificial feeding in the early months of life, and indicates that there is a cumulative effect of artificial feeding, if begun at a very early age, that produces an increasing divergence in the death rates among artificially-fed and breast-fed infants. In other words, the longer infants are breast fed, up to about the eighth or ninth month, the lower the mortality rate.

A report entitled "Maternity and Child Care in Selected Rural Areas of Mississippi" was issued during the year, and the report of a similar study in a mountain county of Georgia has been written. The latter will be published as the sixth in a series of reports on the opportunities and needs of the country mother and child. It deals with native white families in a rural section of southern Appalachia where the problems confronting mothers in bearing and rearing their children are intensified by pioneer conditions. The findings call attention to the lack of medical and nursing service.

The statistical division has continued to assemble and interpret such information on maternal and infant mortality as is available for the nations of the world. Annual statistics from 1915 to 1920 for the expanding birth-registration area of the United States show an increase of the death rate of mothers from causes connected with maternity, and the rate in this country for 1920 is the highest among all nations for which recent statistics are available. Infant mortality has decreased in the United States, but the American rate is still not as low as the rates for five foreign countries.

CHILD LABOR.

FEDERAL PROHIBITION AND REGULATION UNCONSTITUTIONAL.

The decision rendered by the United States Supreme Court on May 15, 1922, in the case of Bailey and Bailey *v.* The Drexel Furniture Co., to the effect that the child labor tax law is unconstitutional, has provoked widespread discussion as to what shall be the next step in the control of child labor.

In the development of public opinion with reference to child labor the experience of the United States has been not unlike that of Great Britain and western Europe, but in the actual machinery for regulation and control there have been great differences—demonstrating at once the advantages and the limitations of the Federal form of government.

From the beginning the extent of child labor and the conditions under which children worked differed from State to State and from district to district in the same State. The demand for universal education and the recital of the evils of child labor by early labor leaders and social reformers brought the first legislative efforts to reduce the employment of children. A beginning in such legislation had been made in the New England States, New Jersey, Pennsylvania, and Ohio before 1860, but the greatest progress was made the latter part of the nineteenth century and early part of the twentieth.

In spite of great diversities in the child labor laws of our 48 States, the developing tendencies in the United States are clear. In general, the laws set up an age, an educational, and a physical standard which the child must attain before he can be employed in a specified list of occupations; they regulate the hours during which he may work during the first few years of employment and prohibit him from certain hazardous occupations. The enforcement is through a work-permit system usually administered by the public schools and through inspection of the place of employment. But the details of these laws are so different that they fit together like the pieces of a crazy quilt. Discussion of the importance of greater uniformity among the States reached Congress about 16 years ago.

In December of 1906 Senator Beveridge and Congressman Parsons introduced bills "to prevent the employment of children in factories and mines," and Senator Lodge sponsored one "to prohibit the employment of children in the manufacture or production of articles intended for interstate commerce." Nearly 10 years later the first Federal child labor law, known as the Keating-Owen Act, was passed.

Basing its authority on the power of Congress to regulate interstate and foreign commerce, the act of September 1, 1916, closed the channels of interstate and foreign commerce to the products of child labor.[1]

The day before the act took effect—August 31, 1917—an injunction was granted by the United States District Court in the western district of North Carolina enjoining the United States attorney of that district from enforcing the act on the ground that it was unconstitutional. This injunction applied only to the judicial district in which it was granted, and the act was enforced elsewhere until nine months later, when the Supreme Court of the United States affirmed the decision of the district court in the case of Hammer *v.* Dagenhart.

Congress then sought to take advantage of another power, that of laying and collecting taxes, and provided for a tax upon the profits of industries employing child labor. This has also been declared unconstitutional. In its opinion as to the first law, the Supreme Court was divided five to four; the second was an eight to one decision. The court, therefore, seems to have made the issue clear; either we give up the plan of a Federal minimum and rely solely upon the States, or we undertake to secure a Federal amendment definitely giving to Congress the power to pass a child labor law, since the Supreme Court has found it does not now have that power.

[1] Specifically, the act prohibited the shipment in interstate or foreign commerce of the products of a mill, cannery, workshop, factory, or manufacturing establishment in which, within 30 days prior to their removal, children under 14 years of age were employed, or children between 14 and 16 years of age were employed more than 8 hours a day, or more than six days a week, or between 7 p. m. and 6 a. m., or the products of a mine or quarry in which children under 16 were employed within 30 days prior to the removal of such products.

If it is to be a Federal amendment, the question as to whether Congress should be given exclusive or concurrent jurisdiction has arisen.

Both the first and second Federal child labor laws sought only a minimum national standard. State laws that were higher were still operative and were enforced by State machinery. Only in a relatively few communities was Federal enforcing machinery necessary. State officials charged with the enforcement of State child labor laws very generally testify that the Federal act increased the respect for the State laws. Under these laws the relation of the Federal and State Governments and their enforcing agencies was the same as under the pure food and drug act. An amendment giving to Congress the right to establish a Federal minimum and leaving to the States the right to raise and not lower standards, thus securing to the children all the advantages of our Federal form of government, is being advocated by the most representative organizations of women, trade-unions, the National Consumers' League, and the National Child Labor Committee.

The returns from the 1920 census, taken at the beginning of a period of industrial depression and with the Federal child labor tax law discouraging their employment, show fewer children under 14 and under 16 gainfully employed than did the census of 1910; but the decline is much less than it should be, especially in view of the fact that our standards of protection have moved forward during the past 10 years. When the first Federal child labor law was passed, only two other nations, Norway and Switzerland, had adopted the 14-year-age minimum, and of the States, Ohio and Montana alone had an age standard higher than the Federal. Now, nearly all the civilized western nations afford the children this minimum protection. According to the most recent information available, Belgium, Bulgaria, Czechoslovakia, Denmark, Germany, Greece, Great Britain, the Netherlands, New Zealand, Norway, Rumania, and Switzerland have adopted a 14-year-age minimum, and seven American States have passed that standard.

The extent to which the children of the United States have suffered from the nullifying of the Federal child labor tax law may be measured by the fact that only 13 States meet in all particulars the standards of the Federal law. These are Alabama, Connecticut, Illinois, Indiana, Kansas, Kentucky, New York, Ohio, Oklahoma, Oregon, Tennessee, West Virginia, and Wisconsin. Certain other States come fully up to one or more of the standards, but fail in regard to others. Of these, 14 establish as high an age standard for as many or more industrial occupations; 13 and the District of Columbia establish the same hour standards, or better standards, for as many or more occupations; 12 and the District of Columbia prohibit night work for children in as many or more occupations; and 12 prohibit the employment of children under 16 years of age in mines and quarries. Those States which to-day permit the employment of children under 14 years of age rank with Japan, China, and India in the protection which they give to working children.

RECENT INVESTIGATIONS OF THE CHILDREN'S BUREAU.

During the past year the industrial division of the bureau has placed its principal emphasis upon the study of two important as-

pects of the problem of child employment: (1) The relation of farm labor to child welfare and (2) organized methods of promoting the welfare of the child in his transition from school to work.

Farm labor and child welfare.

Studies of rural child labor in connection with the sugar-beet industry in Michigan and Colorado and in connection with the cultivation of cotton in Texas, brief analyses of which were presented in the bureau's last report, have been completed. New studies include a survey of the farm work of children and mothers in three States—New Jersey, Maryland, and Virginia. These States, which lead in the production of vegetables and small fruits, are part of the truck-farming area lying along the Atlantic seaboard from New Jersey to Florida, one of the earliest to be developed and one of the largest sections devoted to large-scale production of truck crops.

In these districts the seasonal demand for farm labor, especially during the harvesting of the crops, far exceeds the local supply in many places. In consequence, the farmers in certain sections use large numbers of migratory workers, chiefly family groups from near-by industrial centers. Much of the work on truck farms is hand labor and is done by children.

In the course of the study, information was obtained relative to the work, schooling, living conditions, and family welfare of approximately 3,600 children under 16 years of age who were found employed on truck farms in Maryland, New Jersey, and Virginia, and of 869 children enrolled in the schools of Philadelphia who had been absent for work on New Jersey truck farms during the course of the school year.

In Maryland two distinct trucking areas were chosen for study—one covering parts of three counties of the peninsular region or southern section of the area commonly known as the Eastern Shore, and the other including a part of Anne Arundel County, which lies immediately south of Baltimore. There were many differences in the two sections.

With only three exceptions, the fathers of the white children on the Eastern Shore were native born; the fathers in nearly three-fourths of the families of white children found working in Anne Arundel County were foreign born; over half the children on the Eastern Shore and two-fifths of those in Anne Arundel County were negro. Most of the children on the Eastern Shore were resident either on the farms on which they worked or in the immediate neighborhood; three-tenths of the children in Anne Arundel County were members of Polish families from Baltimore who had come out for work for the trucking season only. Most of the resident white children in both areas belonged to families who owned or rented their farms, but many of the negro children belonged to laborers' families.

Almost three-fifths of all the white children and nearly three-fourths of the negro children reported that they had started to work in the fields before reaching the age of 10; one-fourth of the white and nearly one-third of the negro children were under 10 years of age when interviewed. The kind of farm work depended partly upon age and sex of the children and partly upon whether they were resident or nonresident upon the farms on which they worked. With few exceptions, the work of the migratory children was confined to

picking strawberries, peas, and beans, while the resident children worked on a variety of crops and processes. Thus, although nearly three-fourths of the resident children picked strawberries, over half also "took up" or transplanted strawberries, sweet potatoes, tomatoes, and other plants. Nearly one-half reported gathering white or sweet potatoes; many reported weeding and thinning, and picking beans, peas, tomatoes, melons, and cucumbers. General farming work such as plowing, harrowing, planting, cultivating, and hoeing was reported by one-third to one-half of the boys; planting and hoeing by from one-fourth to two-fifths of the girls. The kinds of work most commonly reported by children under 10 years of age were transplanting and picking small fruits and vegetables.

The crowded and insanitary conditions of the camps in which the truck farmers house the migratory workers constituted the most serious menace to the welfare of the children. The shacks provided for them were found to be barnlike structures, usually of two stories with one large room on each floor used for sleeping purposes. Over half the migratory families visited shared one or two rooms with from 30 to 100 persons of both sexes and all ages. Each family group was usually given a section of the floor, the amount of space depending upon the size of the family, but as a rule about 6 feet square, separated from the section allotted to the next family by a board about a foot in height. There were no screens. More than half the families lived in camps where no toilets were provided.

The problem of school attendance is a serious one, especially for the children in migratory families, who usually leave school from four to six weeks before the end of the school year. Two-thirds of these children between 10 and 14 years of age were retarded in school as compared with nearly one-third of the white resident working children of the same ages on the Eastern Shore.

Every spring from the city of Philadelphia hundreds of families migrate to farms of New Jersey and Delaware for seasonal work on the strawberry, asparagus, tomato, and other truck crops. Many remain until fall for work in the cranberry bogs. Partial reports received from attendance officers in different parts of Philadelphia showed that at least 1,300 children left school in the spring of 1921 for work in the country. The majority do not return to the city until the last of October or the first of November, and then, eight or nine weeks late, straggle back to the already overcrowded schools. Many return even later and present a still more difficult school problem.

Eight schools in the Italian district of Philadelphia from which migrations were the heaviest were chosen by the bureau for intensive study. It was found that 14 per cent of the entire enrollment of the eight schools, and as high as 33.3 per cent in one school, had been absent because of migrations for work on truck farms. Altogether 869 children under 16 years of age whose school records showed late entries, early withdrawals, or consecutive absences of a fortnight or more in the fall or spring, were interviewed by agents of the bureau. The school progress of these children was unsatisfactory. Only 70 per cent had made their grades and the number of children retarded was consequently large. About 71 per cent of those between 8 and 16 years of age were one year or more below their normal grade; 26.3 per cent were one year, 22.5 per cent were two years, and 22.3 per cent from three to six years below normal. The long-continued

absences in the autumn not only affected the child's progress in his studies but were probably conducive to truancy and to absence for other unlawful reasons, the restraint of the schoolroom not having been felt for many months. Three-fourths of the children had been absent during the year in addition to the days which they had missed because of the field work. The average absence for work on farms was between 15 and 20 per cent, while the average total absence was between 25 and 30 per cent.

The majority of the children who left school to migrate to the country with their parents worked on the truck farms themselves. The greatest demand for child labor was in the strawberry fields, where rush crops required many pickers. The strawberry crop caused absences from school of fully 500 children in the eight schools visited. Many children also picked raspberries, blackberries, peas, and beans, and, in the fall, cranberries. Hoeing, weeding, picking up potatoes, and carrying along the rows the boxes and baskets filled by themselves or other workers were other common farm processes performed especially by the younger children.

The only immediately measurable effect of the migratory life of these children of truck laborers is its interference with schooling. The effect on their future physical and social habits of the promiscuous and unhealthy living conditions, equally important, are not immediately ascertainable.

Administration of child labor laws.

From the date of its organization, the bureau has given special attention to the study of methods of administering child labor laws.[2] During the past year, a bulletin has been completed[3] summarizing the findings of the various studies, both published and unpublished, made by the bureau in this field, with special reference to the enforcement of the laws relating to the issuance of employment certificates.

For the purpose of discussing the problems of administration brought out by these studies, a Conference on Standards and Problems of Certificate Issuance was called by the bureau in cooperation with the National Education Association at the annual meeting of the latter organization in Boston on July 5 and 6, 1922. The topics discussed included the organization of the local employment certificate issuing office, the supervision of local issuance by State authorities, and methods of enforcing age, educational, and physical standards of child labor laws. The conference was attended by a number of local and State officials responsible for the enforcement of child labor laws or for the issuance of work permits. At the close of the meeting the bureau was requested by those attending to call a similar meeting during the coming year, at which time special consideration would be given to the administration of laws relative to street trading.

Vocational guidance and juvenile placement.

A field study of organized vocational guidance and juvenile placement activities has been practically completed by representatives

[2] Administration of Child Labor Laws: Parts I, II, III, and IV.—The Employment-Certificate System, Connecticut, New York, Maryland, and Wisconsin. U. S. Children's Bureau Publications Nos. 12, 17, 41, and 85.

[3] Administration of Child Labor Laws: Part V. Standards applicable to the administration of Employment-Certificate Systems. (In press.)

of the industrial division in cooperation with the junior division of the United States Employment Service. A careful study was made of the method of work in the following cities: Atlanta, Boston, Chicago, Cincinnati, Minneapolis, New York, Oakland, Philadelphia, Pittsburgh, Providence, Rochester, and Seattle. In addition, less detailed information has been secured through correspondence and in some instances by personal inquiry from practically all cities in the United States with a population of 25,000 or over.

The inquiry has covered not only the activities of agencies giving advice to school children and to minors seeking employment but also the operation of the school program in its relation to the future employment of the children. Subjects of special study include the use of mental tests as a means of guidance in education and employment; the kinds of information as to the field of employment and opportunities for try out and training of individual aptitudes offered by the school curriculum; and the relation of child labor and compulsory education laws to a program for employment guidance.

In the planning of this study the bureau has had the cooperation of the National Vocational Guidance Association, whose executive board has served as an advisory committee during the course of the investigation; the United States Bureau of Education and the Federal Board for Vocational Education, as well as a number of individuals interested in the problems that confront the young person leaving school for work, have also assisted in the planning of the study.

UNEMPLOYMENT AND CHILD WELFARE.

No one whose work is in the field of child welfare can look back on a period of unemployment without feeling that in the last analysis its burden falls very heavily on the shoulders of the children—resulting not only in individual hardships on those who should be objects of special protection but finally in permanent community losses. Two small studies of unemployment and child welfare were made by the Children's Bureau during the winter of 1921 and 1922, one in a middle western and the other in a New England city.

The middle western city, in which the industrial depression was reported by the United States Employment Service to be as serious as anywhere in the country, had a population of approximately 59,000 in 1920, and reported a total of from 10,000 to 12,000 unemployed. The New England city had a population of almost 130,000, and approximately 12,000 unemployed.

Through the State and city employment offices the families of 366 men, who had been out of work for 6 months or more and who had two or more dependent children, were selected for a schedule study. In the first city 71 per cent and in the second 48 per cent of these men had been unemployed a year or longer.

It was necessary for 185, or 51 per cent, of the 366 families to apply for charitable aid; only 22 of these had ever before needed such assistance. Ten per cent had aid from relatives, 32 per cent secured loans, 66 per cent had gone into debt for food, 69 per cent had contracted other debts. Forty-three per cent had savings which helped to tide them over the period of depression. The principal source of maintenance, both as to total amount received and the number of families reporting, was money loans and credits

exclusive of credit for food. In all these families there were at least two dependent children; the average number was higher. At the time of the visits by the bureau's agents almost one-third of the families had no income from earnings of father, mother, or children, and 29 per cent more, or a total of 61 per cent, had earnings of less than $15 a week. It was possible to secure from 188 families a close approximation of their average monthly expenditure during the period of unemployment, by analyzing payment for odd days of work, savings, credits at the store, money loans from relatives or friends, and charitable aid. Twenty-six per cent of these families, which included more than a fourth of all the children, spent less than $50 a month.

The general standard of care fell for a larger per cent. Comparison of the average monthly receipts during unemployment with the family income while the fathers were regularly employed was possible for 207 children. Half of these children—60 per cent of them under 7 years of age—belonged to families in which the average monthly incomes during the period of unemployment were less than 50 per cent of the average monthly incomes while the fathers worked at their regular occupations.

What the money will purchase is the test in child welfare, and some conclusions on this point were possible. In the first city studied a budget estimate had been prepared by a large manufacturing firm in which the amounts required for a family were estimated on the basis of the number and ages of its members. Actual cost of food, clothing, rent, fuel, and sundries was locally determined for this budget. For 45 out of 90 families in which comparisons were made, the average monthly receipts from all sources, including relief during the unemployment period, were less than 50 per cent of this budget estimate.

Although in both the cities studied it was very difficult for women to secure work either in factories or in household service, 28 per cent of the mothers in the first city and 38 per cent of the mothers in the second—almost one-third of the combined total—were gainfully employed. Of these approximately 78 per cent had begun work as a result of the unemployment of the fathers and nearly three-fourths were employed away from home. In the families of the mothers working outside their homes there were 102 children under 6 years of age and 154 between the ages of 6 and 13.

With general unemployment, the employment of children is reduced. But everywhere, although men and women, and children who had already left school were walking the streets looking for work, some children were still leaving school and finding work. Of the 148 children between the ages of 14 and 18 years in the families of unemployed men in the two cities, a total of 39 children were regularly employed, of whom 13 were under 16 years. More than one-half of the working children left school to go to work after their own fathers, as well as the fathers of many other children, were unemployed.

CHILDREN'S YEAR IN PORTO RICO.

At the request of the Insular Department of Education and with its active cooperation, the bureau has conducted a "Children's Year

Survey" in Porto Rico during the past year. This work was undertaken after consultation with the Bureau of Insular Affairs and local public and private agencies. It was in charge of Helen V. Bary, of the bureau staff, who received the enthusiastic cooperation of officials, organizations, and individuals on the island.

It was agreed that the survey should combine a study of (1) conditions affecting the welfare of children on the island and (2) means of improving and developing activities for children by enlisting cooperation of existing agencies and by bringing the island into closer contact with sources of information and individuals and agencies, both public and private, engaged in child-welfare work in the States.

There are fundamental difficulties in carrying out a child-welfare program in Porto Rico. In the 24 years since it became part of the United States, the island has made great progress in education and general development. It has reduced its illiteracy from 80 to 55 per cent of the population 10 years of age and over, but, although the island devotes virtually half its total revenue to education, there exist to-day school facilities for only half the children of school age. Porto Rico is, therefore, still handicapped by a high rate of illiteracy. Added to this are widespread poverty and disease. It has a density of population which under existing conditions means both unemployment and underemployment of considerable groups, so that the standard of living of a majority of the people is such that many of the essentials in proper child care can not be provided.

The resources of the island are almost exclusively agricultural, sugar cane, coffee, and tobacco supplying three-fourths of the total value of all crops. These products provide no food for the people, so that Porto Rico is in the anomalous position of being an agricultural country importing its food supply. Because of crop specialization, periods of general unemployment throughout the agricultural districts leave the workers almost as helpless as city laborers in times of unemployment.

The general death rate of Porto Rico is very high. In certain districts practically the entire population is weakened by hookworm and in other districts malaria is equally prevalent. Important demonstrations in the eradication of these two diseases are under way, but these conditions and the menacing rate of tuberculosis call for thorough public-health education on a comprehensive scale. In 1920 the infant mortality rate was 146 per thousand births, which compared unfavorably with the general rate of the United States birth-registration area (86), and was higher than that of any State in that area. The eager interest of Porto Ricans in the welfare of their children is the hopeful balance for these fundamental difficulties.

The first study and demonstration by the bureau of what could be done in a cooperative way was in the field of recreation. Wholesome, normal play has not been considered a part of the birthright of the Porto Rican children, and they have lacked the physical and psychological benefits of playing together and so developing teamwork and the spirit of fair play.

The bureau staff included two play experts, a woman who specialized in games for young children and a man who promoted a general recreation program for older boys. Response to the play movement was general—private citizens assisted the schools in acquiring playgrounds and equipment. During the year play was introduced as a

regular part of the program of nearly 100 schools in different parts of the island, and universal participation in games and athletics was made the goal of the school authorities. School athletic leagues were organized all over the island and games and field meets were held in both urban and rural districts.

At the request of local leaders especial attention was also given to the problem of the prevention of blindness and the conservation of vision. A very successful campaign was organized in which the National Committee for the Prevention of Blindness, the Porto Rico Association for the Blind, the Insular Departments of Health and Education, the American and the Junior Red Cross, individual physicians and citizens, and the bureau staff took part.

Health education was introduced into the schools by two Porto Rican teachers employed on the staff of the Children's Bureau. The local health authorities assisted in adapting to the special needs of Porto Rico a general program of health teaching. Emphasis on dental hygiene greatly increased the number of school dental clinics and the number of children served at the clinics.

"Baby Weeks" were successfully used as a means of popularizing scientific information as to the needs of mothers and babies and of bringing home to the community the importance of maternal and infant hygiene. The first one attempted was in San Juan, and included Three Kings' Day when the usual distribution of gifts took on a community aspect. In addition, there was a Baby Sunday, when the churches gave appropriate messages, Demonstration Day, Fathers' Day, Little Mothers' Day, School Day, and Mothers' Day. Municipal officials, the Woman's Civic Club, doctors, nurses, the Army band, details of soldiers and boy scouts, over 50 speakers and 14 poets, all helped to make the week a success.

During the year the insular department of health organized a division of child hygiene, which has begun a comprehensive survey of the conditions responsible for the high infant mortality rate on the island. Cooperating with the American and Junior Red Cross, infant-welfare stations have been established in various parts of the island, nurses are being trained in public-health work, and the attention of the general public and the medical profession has been directed to reducing this unnecessary loss of life and to improving the health and strength of those who survive. This work is being developed in connection with the schools so that the rising generation of mothers will have a knowledge of the fundamentals of child care.

A large group of homeless children, estimated at 10,000, constitute a pressing problem in dependency for Porto Rico. The bureau made a schedule study of a considerable number of these children, which revealed not only their present needs but some of the causes which made them homeless. Interest has been aroused among official and unofficial agencies to meet the many problems involved in the protection of these children and in the removal of the conditions causing broken homes and homeless children.

The survey was completed in June. It is hoped, however, that through the connections established the bureau will be able to keep in touch with the development of children's work in Porto Rico and from time to time members of its staff will return for consultation and assistance as special problems develop.

STATE CHILD-WELFARE COMMISSIONS.

Since 1911 one State after another has followed the example of Ohio by appointing official child-welfare commissions, which have usually been charged with (1) the responsibility of ironing out inconsistencies of laws relating to children, and (2) of determining how in law and administration the State's care of its children could be improved.

During the past year 11 States have had such commissions. The Maryland, Kentucky, and New York commissions made partial reports and have been continued. The West Virginia and North Dakota commissions are among those which will report to the legislatures of those States in 1923. The Virginia commission reported to the legislature of 1922 and was sponsor for a series of bills which were introduced in the general assembly. Altogether, 18 out of 28 of the measures recommended were passed. The chairman of the commission reports that among the most important of those adopted are:

(1) A law providing for changing the State board of charities and corrections to the State board of public welfare. It creates within the board a children's bureau and provides for the establishment of local boards of public welfare in each county of the State.

(2) A juvenile court procedure act provides for chancery proceedings, instead of the old semicriminal procedure which had previously existed. Another measure extends the juvenile and domestic relation courts system to the counties of the State, giving these courts practically the same jurisdiction now exercised by such courts in cities. The plan is to have a special justice of the peace appointed by the judge of the circuit court. It is hoped that by conference between the local board of public welfare and the judge a man or woman of a very high type can be secured for this position.

(3) Provision for (*a*) public relief for children in their own homes, to be administered by the local boards of public welfare; (*b*) regulation of child-placing and child-caring institutions and agencies, maternity hospitals, and boarding houses and nurseries for children under 6 years of age.

(4) A new child labor law which is a decided improvement over the existing law and includes regulation of street trading. The law still retains, however, the exception, permitting children between the ages of 12 and 16 to work in fruit and vegetable canning factories during the summer vacation.

(5) A new compulsory school attendance law requiring children between the ages of 8 and 14 to attend school.

The bureau has kept in touch with all these commissions and has assembled material for several.

COOPERATION WITH THE CHILDREN'S CODE COMMISSION OF NORTH DAKOTA AND THE SOUTH DAKOTA CHILD WELFARE COMMISSION.

At the request of the North Dakota Children's Code Commission and in cooperation with it a series of studies were undertaken in that State. The industrial division of the bureau made a field study of child labor among school children under 17 years of age in six rural counties and among children under 16 in the three largest cities of

North Dakota. In addition, inspections were made of all the important stores and other places of employment in three cities for the purpose of discovering whether children were illegally employed, especially during hours in which the schools were in session.

The rural survey shows the urgent need for better legal and administrative provisions so that the children coming from rural districts will have educational opportunities more nearly approximating those of the town and city child and will be protected against the physical hazards resulting from unregulated farm labor. In the rural counties included in the study over half the 845 children working on farms had missed 20 days or more of school. Nearly one-third had been absent 40 days or more, and about one-fifth, 60 days or more. Nine per cent had missed half the school term. Absence because of farm work was the principal cause of nonattendance. Seven per cent of the children had lost 60 days or more, or at least three school months, and 28 per cent had lost one school month or more for work on the farm.

The boys and girls included in the study appear to have done almost every variety of work performed on the farms of North Dakota. Although the simpler and lighter tasks, such as raking hay, shocking grain, hoeing, and hauling of all kinds, were the most frequently reported, especially among the younger children, many heavy and more or less hazardous farm processes involving special physical strain, the handling of machinery or dangerous implements, or the driving of four-horse or five-horse teams were commonly performed by children from the age of 10 years up. Plowing, for example, was found to be one of the most important of all kinds of farm work which children did, not only because it was done by a larger number of children but also because it was continued over longer periods of time than almost any other work. Nearly half the children studied had done some plowing during the course of the year, including 359 boys and 55 girls; a majority, including boys as young as 8 years of age, had worked with two-share plows drawn by four or five horses. Boys as young as 7 years of age and girls as young as 10 reported the driving of stackers and hay forks, harrowing, and raking hay.

A mere recital of these facts does not visualize the child on the prairie farm as does Hamlin Garland's story of his own life in "A Son of the Middle Border."

The "middle border" is no longer a frontier of American life. The care given children to-day is better than it was possible to give to children born under the pioneer conditions of 50 years ago. But it is not all changed—a few of the grandchildren of those American soldiers who turned to the West when the Civil War was over, and a much larger number of the children of the immigrant settlers who followed them, are to-day doing a "man's work" on the farm when they are still "little boys longing for the leisure" and needing the schooling of boyhood.

As Hamlin Garland pointed out, "There are certain ameliorations to child labor on a farm. Air and sunshine and food are plentiful." There are "changes in the landscape, in the notes of birds, and in the play of small animals on the sunny soil." The charm and mystery of the prairie is a part of the inheritance of its sons and daughters. Good schools and wholesome recreation, as well as the discipline of daily tasks, should also be their heritage.

But, like Garland, Dakota children are still finding that "To guide a team for a few minutes as an experiment was one thing—to plow all day like a hired hand * * * was not a chore, but it was a job," and a job means meager educational opportunities in the spring and autumn.

For these children, as for him, "the sun crawled slowly up the sky." They are "hungry by 9 and famished at 10," and "thereafter the sun appeared to stand still." The wild geese racing southward at the close of the Indian summer cheer the cold and lonely children as they go round and round the fields, counting the days until the ground freezes too deep for plowing.

Is it not this which makes the farmer's son, when at last free to choose his occupation, so often turn his back on the farm, where he has for years done a man's work and known a man's responsibility, and choose industry or trade for his life work?

In North Dakota few children are employed on a full-time basis in nonagricultural occupations—according to the 1920 census only 452 boys and girls between 10 and 16 years of age. In the 46 establishments visited by agents of the bureau, which included practically all the possible child-employing establishments in the three largest cities of the State, only 37 children under 16 were found at work. An inquiry made in the schools of these cities showed, however, that 1,474 children under 16 years of age attending school at the time were working outside school hours or had at some time during the year done some kind of paid work other than farm labor.

The child labor law of North Dakota lays down standards which are higher than those in effect in many States. The employment of children under 14 during school hours in any occupation is prohibited, the employment of children under 16 in any occupation is prohibited for more than 8 hours a day, or 48 hours a week, or before 7 a. m. or after 7 p. m. Children under 16 can not legally be employed in certain specified occupations unless they can satisfy certain educational requirements and have secured an employment certificate issued by the local superintendent of schools. Little or no provision has been made for the enforcement of the law, so it was not surprising to find that all except 8 of the children found at work in establishments visited by agents of the bureau were employed in violation of one or more of the provisions of the statute.

The social-service division of the bureau made studies not only in North Dakota but, at the request of the South Dakota Child Welfare Commission, in that State also. A census of children in institutions and under supervision of agencies was taken; through detailed field surveys made in 10 counties in each State, and through questionnaires in other counties, information was secured in regard to child dependency and neglect, delinquency, juvenile courts, mothers' pensions, children handicapped mentally or physically, and other problems relating to children in need of special care by the community.

In both these States with predominantly rural populations the need for the development of the child caring and protective work in rural and small-town communities was evident. The indications were that children were being deprived of care by their normal guardians and received as wards of public or private agencies, when the homes might have been preserved through financial assistance or such supervision as would safeguard the welfare of the children.

Provision for State supervision over child-caring agencies and institutions, and insistence on proper standards of investigation of home conditions and resources, enforcement of parental obligations, and constructive work with the families before children were removed from the custody of their parents would have saved many children from becoming wards of agencies and institutions.

The transfer of legal guardianship without court action or the authorization of a public agency was the prevalent method in the two States included in this study. More than two-thirds of the children received by the child-caring agencies in one State were permanently removed from the custody of their parents through a release signed by them, as against a fourth of the whole number in which the custody had been changed by court order. More than half the children received under the permanent care of child-caring agencies were under 6 months of age when they were removed from the custody of their mothers. There was evident need for protecting dependent children through safeguarding adoptions, both by inquiry into the desirability of removing the child from the custody of his natural guardian and investigation of the conditions in the prospective foster home before awarding legal custody of the child.

To a surprising degree economic and moral conditions of the home rather than the death of parents caused the dependency of the children. Among 414 children received under the permanent care of four societies in North Dakota in two years, only one had lost both parents through death. Thirteen per cent of the whole number had, at the time the agencies received them, no parental home. In 37 per cent of the cases the homes had been broken by the death of one parent, or by desertion, divorce, or separation. By far the most frequent cause of dependency was illegitimate birth—almost half the children received permanently as wards of agencies caring for dependent children were accepted from the custody of unmarried mothers. Although North Dakota has in some respects a very advanced law in regard to the father's obligation for the support of his children born out of wedlock, it was found that the benefits of the law were, in fact, being secured for only a small percentage of such children.

The children who had been committed to the State training school because of delinquency were likewise found to come from broken homes in a large proportion of cases. Eleven per cent had no parental home, and 25 per cent had been deprived of the care of the father or the mother. One-fifth of the children came from homes in which there was a step-parent. Only 46 per cent of the children committed to this institution because of delinquency came from homes in which both parents were present. Detrimental home conditions were apparently responsible for a considerable part of the State's juvenile delinquency problem, not only when misfortune had deprived the children of parental care but also very frequently when both parents were in the home but were unable or unwilling to organize the home life so as to give proper training to their children.

Reports of the findings of the North Dakota studies have been transmitted to the children's code commission and are being used by the commission in determining the changes in legislation and administration necessary for the proper care and protection of the children of the State.

DEPENDENT CHILDREN.

Several studies of the care of dependent children have been made during the year. Among these is one based on the records of 2,444 children who during one year had been under the supervision of the Board of Children's Guardians of the District of Columbia. All of these children had been committed to the board by the juvenile court; 1,683 because of dependency or neglect and 761 because of delinquency. Of the total number of children, 1,830 were committed to the board as permanent wards and 614 for temporary care. Only 5 per cent of these children were full orphans. The fathers of 10 per cent were dead and the mothers of 5 per cent. The whereabouts of both parents were unknown in 9 per cent of the cases. Thirteen per cent were children of unmarried mothers. The fathers of 7 per cent of the total number had deserted, and the mothers of 18 children had left their families. Of the total 2,444 children the parents of 348 were living together in the family home.

There is in the District of Columbia no provision for public aid to children in their own homes. The large number of children (982) removed from homes in which the mother was the head of the household, the father having died, deserted, evaded his responsibility, or become an inmate of a hospital or correctional institution, indicates that with some help many of their mothers could have maintained their homes and cared for their own children.

During the 11 years that have elapsed since the first mothers' pension law was passed, 40 States and Alaska, Hawaii, and Porto Rico have adopted legislation authorizing this form of public relief for dependent children in their own homes. The principle may, therefore, be said to have been generally accepted. There is, however, much variation in the local methods and standards of administration and, in consequence, in the extent to which the law serves the purpose for which it is intended.

During the past year an attempt has been made to assemble information as to the administrative practices of the various States in this field. The results of a general survey made partly by correspondence and partly by visits to localities are now being compiled. A more intensive study of the methods of work and standards of relief has been made in localities typical of different conditions and different types of legislation, including three large cities; a county containing a large city and surrounding rural population; a smaller city; three counties composed of medium-sized and small cities, towns, and rural population; and a county entirely rural. Approximately 6,500 children were being aided in their own homes in the nine localities included in the study, and more than 1,800 homes were being conserved through assistance that enabled the mother to care for the children.

The report of this investigation shows the need for consideration of the standards of living which must be maintained if the welfare of the children is to be promoted. These include not only the fundamental items of food, housing, and clothing but also the care of the health of the children and the mother and opportunities for education and recreation.

All of the localities studied used some recognized budget standard as a basis for estimating the amount of aid required for each family.

In the budget making, however, careful consideration is not always given to the needs of each individual child. After the amount needed has been carefully determined, it can not be given in many States because provisions in the laws or rulings of a board fix a maximum amount available for a family or child.

During the year a cooperating committee appointed by the family division of the National Conference of Social Work has made a study of the use of budgets in determining the aid needed and of the standards that prevail in various communities. The results of the inquiry were presented at a round table held in June under the auspices of the committee and the Children's Bureau, which is publishing the proceedings. The committee recommendations with reference to the minimum requirements for sound administration were presented for discussion and covered the following points: (1) Necessity for adequate aid; (2) use of standard budget schedule; (3) items of a reasonable budget; (4) use of itemized household expense accounts from families receiving assistance; (5) distribution of literature on health, food values, etc.; (6) desirability of State supervision; (7) formulation of general minimum standards of living. The committee's work is to be continued during the coming year with especial reference to the definition of standards concerning food, housing, clothing, education, recreation, and safeguarding health.

THE LEGAL PROTECTION OF CHILDREN BORN OUT OF WEDLOCK.

In 1920, at the request of the Inter-City Conference on Illegitimacy, the Children's Bureau held two regional conferences, at which standards for the legal protection of children born out of wedlock were considered. A number of principles were agreed upon at this time and the National Conference of Commissioners on Uniform State Laws was asked by the Chief of the Children's Bureau to draft a measure for the legal protection of such children.

At the 1920 meeting of the commissioners, a committee was appointed for this purpose and Prof. Ernst Freund, of the University of Chicago Law School, was made chairman. A tentative draft, which provides for support, status, and the right of inheritance, was reported at the meeting of the commissioners in 1921.

This measure encountered opposition in the conference and was referred back to the committee. At the 1922 meeting a bill was agreed upon which is confined to the problem of support of the child. It provides that the parents of a child born out of wedlock owe it "maintenance, education, and support," a duty not imposed by the common law nor by the statutes of many States. The father is made liable for the expenses of the mother's pregnancy and confinement.

"Action may be undertaken against the father, either by the mother, her legal representative, a third person furnishing support, or the authorities charged with the child's support, if it should become dependent. There are new provisions intended to meet the problem of the absconding father, which permit the mother, regardless of her own place of residence, to begin proceedings in the place where the father is permanently or temporarily resident.

The estate of one whose paternity has been judicially established in his lifetime or acknowledged by him in writing is liable to such an amount as the court may determine, "having regard to the age of the child, the ability of the mother to support it, the amount of property left by the father, the number, age, and financial condition of the lawful issue, if any, and the rights of the widow, if any," as well as the obligation to provide for his unlawful issue.

"Maintenance, education, and support" will be a long step forward in most of the States where the viewpoint of a century or more ago has been left on the statute books. The act does not set up the administrative machinery which students of social problems will recognize is necessary to secure for the children the benefits which the law intends. This is a matter for individual action rather than a uniform State law, as is also the question as to whether public opinion will permit a larger measure of justice for the child of natural parents than this act gives. But even with support, status, and inheritance rights established, the child born out of wedlock will be without a normal home which has community as well as legal sanction and in which there are what every child needs, both a father and mother. No measure should therefore divert the attention of those concerned with the welfare of the child from providing better training and more safeguards for the young, effective control of irresponsible adults, and a wider acceptance of the ideal of self-control and the responsibilities of parenthood among both men and women.

JUVENILE COURTS.

The advisory committee on juvenile-court standards, appointed following a conference on juvenile courts held under the auspices of the Children's Bureau and the National Probation Association in June, 1921, has been active during the past year. A comprehensive outline for consideration of standards was prepared, and at a second joint conference held June 21, 1922, in connection with the annual meeting of the National Probation Association, members of the advisory committee led in the general discussions of the topics included in the outline. Work will be continued during the coming year, and the conclusions of the committee will be presented for discussion at the next annual meeting of the National Probation Association.

Two juvenile-court monographs by authorities in their respective fields have been issued this year—The Practical Value of Scientific Study of Juvenile Delinquents, by Dr. William Healy, and The Legal Aspect of the Juvenile Court, by Bernard Flexner and Reuben Oppenheimer. A report describing the organization and methods of operation of the Chicago Juvenile Court—the oldest and one of the largest in the country—has been issued.

The history of the juvenile court, covering a period of more than 20 years, has shown that the State must set the machinery in motion if children in rural as well as in urban communities are to receive the benefits the laws intend. At present 48 per cent of our children live in rural areas. If they are neglected or delinquent, investigation shows that they have about one-seventh the chance for treatment fitted to their needs as they would have if they happened to reside in one of the great cities. New York and Massachusetts have been pioneers in State promotion of juvenile-court and probation stand-

ards. The past few years have seen a marked development of cooperation in juvenile-court work by State departments and county public-welfare or child-welfare organizations. Aid rendered juvenile courts includes preparing forms to be used, developing community resources, securing appointment of probation officers, promoting the training of probation officers, publishing educational matter, and advising and assisting in difficult cases. Especially significant work under State or State and county auspices is under way in Alabama, California, Georgia, Indiana, Minnesota, Nebraska, North Carolina, and Pennsylvania.

Although the principles governing the juvenile court have been accepted, in theory at least, by every State but two, our Federal laws, like the old criminal law, make no distinction between adults and children. In consequence, United States courts, save those operating in the District of Columbia, are still proceeding against little children by the ordinary methods of arrest, detention in jail with adults, indictment by the grand jury, and final discharge or sentence of fine or imprisonment. A report issued by the bureau during the year, entitled "The Federal Courts and the Delinquent Child," has called attention to the extent of this problem and the urgent need for remedial legislation. The United States should lead and not lag far behind the States in the care that it gives children who come under its jurisdiction.

PUBLICITY AND EXHIBITS.

During the past year a total of 614 articles containing material furnished by or relating to the work of the Children's Bureau were published in magazines, books, pamphlets, and bulletins, not including Children's Bureau reports. The corresponding number for 1921 was 556. Twenty-three articles by members of the bureau staff have been published in magazines and bulletins, and 18 others have been prepared for publication.

Books and periodicals using bureau material included popular magazines, educational, statistical, medical, legal, and other technical books and journals. Publications of the following foreign countries used press material prepared by the bureau or contained articles relating to its work: Argentine Republic, Australia, Austria, Belgium, Canada, Czechoslovakia, England, France, Italy, India, Mexico, New Zealand, Norway, Switzerland, and Yugoslavia.

As a means of reaching the large group in our population who can not read English, the Children's Bureau has continued to utilize a foreign-language press service which has put its resources at the disposal of a number of Government bureaus. The service receives copies of the regular press releases and articles especially prepared.

For the use of members of the Children's Bureau staff and nationwide and local organizations cooperating with the Children's Bureau, a short summary of items of interest in the child-welfare field has been prepared about once a week. The number of issues during the year was 45.

The service rendered by the Children's Bureau in loaning exhibit material for short periods to expositions, county fairs, and organizations of various types engaged in child-welfare work has been continued. The exhibit equipment has been augmented during the year

by the purchase of five additional copies of the motion picture "Our Children" and of one set of charts on the school child, three sets of charts on infant welfare, and three sets of charts on food for the growing child. Twenty-eight new wall panels have been prepared by members of the bureau staff.

PUBLICATIONS.

The total printing fund available for the year was $36,000—$20,000 less than was available for 1920–21. In order to keep within the amount allowed, the distribution of popular bulletins was curtailed and covers were omitted from all reports.

During the year a total of 85,494 letters were received and given due attention, and 1,280,823 Children's Bureau publications, including 644,805 popular dodgers, were distributed. The distribution of the popular bulletins on the care of children was as follows:

Prenatal Care	97,243
Infant Care	203,253
Child Care	70,370
Milk, the Indispensable Food for Children	26,098

During the past year 37 reports and leaflets were issued, as follows:

Ninth Annual Report of the Chief, 1921.
Aid to Mothers with Dependent Children, by Emma O. Lundberg. (Reprinted from Annals of the American Academy of Political and Social Science.)
Chicago Juvenile Court, The, by Helen Rankin Jeter.
Child Labor and the Welfare of Children in an Anthracite-Coal-Mining District. (Shenandoah.)
Child Labor and the Work of Mothers in Oyster and Shrimp Canning Communities on the Gulf Coast, by Viola I. Paradise.
Child Labor, Separate No. 4, from Child Care and Child Welfare, Outlines for Study, prepared in cooperation with the Federal Board for Vocational Education.
Child Mentality and Management, Separate No. 2, from Child Care and Child Welfare, Outlines for Study, prepared in cooperation with the Federal Board for Vocational Education.
Children in Need of Special Care, Separate No. 5, from Child Care and Child Welfare, Outlines for Study, prepared in cooperation with the Federal Board for Vocational Education.
Children of Wage-Earning Mothers: A study of a selected group in Chicago, by Helen Russell Wright.
County Organization for Child Care and Protection.
Decline in Infant Mortality, The, by Robert Morse Woodbury, Ph. D. (Reprinted from the March, 1922, issue of Mother and Child.)
Directory of Local Child-Health Agencies in the United States.
Federal Aid for the Protection of Maternity and Infancy, by Grace Abbott. (Reprinted from September, 1922, issue of the American Journal of Public Health.)
Federal Courts and the Delinquent Child, The: A study of the methods of dealing with children who have violated Federal laws, by Ruth Bloodgood.
Hygiene of Maternity and Childhood, The, Separate No. 1, from Child Care and Child Welfare, Outlines for Study, prepared in cooperation with the Federal Board for Vocational Education.
Industrial Home Work of Children: A study made in Providence, Pawtucket, and Central Falls, R. I.
Infant Care (revised.)
Infant Mortality and Preventive Work in New Zealand, by Robert Morse Woodbury, Ph. D.
Juvenile Courts—Present and Future, by Emma O. Lundberg. (Reprinted from the Proceedings of the Annual Congress of the American Prison Association, Jacksonville, Fla., October 28 to November 3, 1921.)

Juvenile Detention Homes, by Katharine F. Lenroot. (Reprinted from Annual Report and Proceedings of the National Probation Association, 1921.)
Legal Aspect of the Juvenile Court, The, by Bernard Flexner and Reuben Oppenheimer.
Maternity and Child Care in Selected Rural Areas of Mississippi, by Helen M. Dart.
Office Administration for Organizations Supervising the Health of Mothers, Infants, and Children of Preschool Age, with special reference to public-health nursing agencies, by Estelle B. Hunter.
Play and Recreation, Separate No. 3, from Child Care and Child Welfare, Outlines for Study, prepared in cooperation with the Federal Board for Vocational Education.
Playground Facilities in the District of Columbia (mimeographed).
Practical Value of Scientific Study of Juvenile Delinquents, The, by William Healy, M. D.
Proceedings of the Conference on Juvenile-Court Standards, held under the auspices of the United States Children's Bureau and the National Probation Association, Milwaukee, Wis., June 21–22, 1921.
Promotion of the Welfare and Hygiene of Maternity and Infancy. Text of the act of November 23, 1921, and maximum amounts available to the States.
Promotion of the Welfare and Hygiene of Maternity and Infancy (revised edition).
Sheppard-Towner Act in Relation to Public Health, The, by Anna E. Rude, M. D. (Read before the section on Preventive and Industrial Medicine and Public Health at the Seventh-third Annual Session of the American Medical Association, St. Louis, May, 1922.)
Social Responsibility for the Protection of Children Handicapped by Illegitimate Birth, by Katharine F. Lenroot. (Reprinted from Annals of the American Academy of Political and Social Science.)
Standards of Child Welfare, by Julia C. Lathrop. (Reprinted from Annals of the American Academy of Political and Social Science.)
Statures and Weights of Children Under 6 Years of Age, by Robert Morse Woodbury, Ph. D.
Statures and Weights of Children Under Six Years of Age, by Robert Morse Woodbury, Ph. D. (Reprinted from Journal of Physical Anthropology.)
Westergaard's Method of Expected Deaths as Applied to the Study of Infant Mortality, by Robert Morse Woodbury, Ph. D. (Reprinted from the Quarterly Publication of the American Statistical Association, September, 1922.
Work of the Children's Bureau of the United States Department of Labor, The. (Reprinted from the October, 1922, issue of Mother and Child.)
Working Children of Boston, The: A study of child labor under a modern system of legal regulation, by Helen Sumner Woodbury, Ph. D.

Two revisions of the List of Publications of the Children's Bureau, to February 1 and to July 1, 1922, were also issued.

The following publications are in press:

Administration of Child Labor Laws, Part 5: Standards applicable to the administration of employment-certificate systems.
Child Labor and the Work of Mothers in the Beet Fields of Colorado and Michigan.
Children of Preschool Age, Gary, Ind.: Part I, General conditions affecting child welfare; Part II, Diet of the children.
Illegitimacy as a Child-Welfare Problem, Part 3: Analysis of schedule studies of the care of children born out of wedlock in selected urban and rural communities.
Infant Mortality: Results of a field study in Baltimore, Md.
Infant Mortality: Results of a field study in Gary, Ind.
Maternity and Infant Care in a Mountain County in Georgia.
Nutrition and Care of Children in a Mountain County of Kentucky, The.
Physical Status of Preschool Children, Gary, Ind.
Proceedings of the Conference on Mothers' Pensions, held under the auspices of the mothers' pension committee, family division, of the National Conference of Social Work, and the Children's Bureau, United States Department of Labor.

Reports on the following subjects are in preparation:

Administration of Public Aid to Children in Their Own Homes.
Baby-Week Campaigns (revised).
Child Labor in North Dakota.
Child Welfare in Cotton-Growing Areas of Texas.

Child Welfare in the Island Possessions: 1. Porto Rico.
Child Welfare in Truck-Farming Areas of Maryland.
Child Welfare in Truck-Farming Areas of New Jersey.
Child Welfare in Truck-Farming Areas of Virginia.
Dependent Children in the District of Columbia.
Game Manual: How to Teach Games.
Health of the Young Industrial Worker.
Infant Mortality: Australia.
Infant Mortality in Eight Cities.
Juvenile-Court Organization and Methods.
Maternal Mortality (revised).
North Dakota and South Dakota Studies of Dependency and Delinquency.
Opportunities for Minors in Metal-Manufacturing Industries in Michigan.
Protective Work for Children.
Standards of Aid to Children in Their Own Homes.
Unemployment and Child Welfare.
Vocational Guidance and Placement (in cooperation with the United States Employment Service).
Welfare of Children in Bituminous Coal-mining Communities of West Virginia, The.
Welfare of Children in Families Living on Canal Boats, The.

At the time that the Children's Bureau was created in 1912 it was the first public agency, not only in the United States but in the world, directed to consider as a whole the problems of childhood and child life. During the decade that has passed similar bureaus have been created in Belgium, Czechoslovakia, Germany,[4] Russia, Poland, and Yugoslavia.

In the United States there have been certain substantial advances in public provision for the care of children during these 10 years. At the time the bureau began its infant-mortality studies the birth-registration area had not been established by the division of vital statistics of the Bureau of the Census, and facts were, in consequence, not available as a basis for action. Now the birth-registration area includes 29 States and the District of Columbia and 66 per cent of the population. The number of States which have special bureaus or divisions dealing with child health has increased from 1 to 46; 42 States have availed themselves of the benefits which the maternity and infancy act of November 23, 1921, offers. More than half the States have created commissions to make comprehensive inquiries into all aspects of child welfare, with a view to a recodification of existing laws and such improvements in law and administration as are found to be needed to bring the State's care of its children up to standard. In more than half the States, bureaus or divisions dealing especially with dependent, neglected, or delinquent children have been organized either as independent administrative units or in the State departments of public welfare or charities. The number of States which have provided mothers' pensions has increased from 2 to 40.

There has been an increasing appreciation of the importance of technique in the field of child care; of linking up the State with the local administrative machinery and of including in the field of interest all the children of the community. The medical profession is giving more consideration to the social and economic aspects of child health, and the social workers have learned the importance of a physical diagnosis before determining social treatment.

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[4] Law passed in 1922, but not to go into effect until 1923.

The Children's Bureau does not claim responsibility for these changes. It can, however, be said that its investigations furnished the facts on which action was frequently based, and because of the cooperation of experts in child welfare, public and private child-caring agencies, and women's organizations, the bureau has been able to focus national attention on some of the most important aspects of child care.

During the year just past the bureau has had an appropriation of $271,040 for investigation and research, and $490,000 for the administration of the maternity and infancy act during the last quarter of the year, all except $12,500 of which was for distribution among the several States. During the coming year it will have the full appropriation of $1,240,000 authorized by the maternity and infancy act, of which not to exceed $50,000 will be spent by the bureau for administrative purposes; it will also have $40,000 more for the investigation of child welfare than it has had this year. With this increase the bureau will be able to meet only a small per cent of the opportunities for substantial contribution to the welfare of children which are offered it. Under the direction of Julia C. Lathrop, the practical value of a scientific research and educational bureau in the field of child care has been established; to what extent it will be enabled to expand to meet opportunities for service is a question of public policy involving a decision as to the relative importance of children and their welfare as compared with other objects of national expenditure.

GRACE ABBOTT, *Chief.*

Hon. JAMES J. DAVIS,
Secretary of Labor.

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